Wyoming K-12 AI in Education Transparency Act Model Policy: Data and Student Privacy Passages

Excerpted verbatim from *Model Policy: The K-12 Artificial Intelligence in Education Transparency Act (submitted to the Wyoming Legislature interim committee, 2026)*. Page numbers refer to the PDF pages of the source file. Ellipses (…) mark omitted text.

Section 1. Purpose and Findings (excerpt)

Source: page 1

While artificial intelligence may offer instructional benefits, its use also presents risks, including data privacy violations, diminished academic integrity, ideological bias, and inappropriate replacement of human educators.

Transparency, parental consent, and clear limitations are necessary to ensure that artificial intelligence is used responsibly and consistent with constitutional principles and local control.

Therefore, the purpose of this Act is to establish a framework that protects parental rights, student data privacy, and instructional integrity while allowing limited, responsible use of artificial intelligence in K-12 education.

Section 2. Definitions (excerpt)

Source: page 1

“Student data” means any information directly related to an identifiable student, including academic records, behavioral data, biometric identifiers, or online activity.

Section 3. Parental Notice and Consent

Source: page 2

A school entity shall not require or permit a student to use artificial intelligence or generative artificial intelligence as part of instruction or school-sponsored activities without first obtaining written, opt-in parental consent.

Each school entity shall provide parents, not less than annually, with a written disclosure identifying:

- All artificial intelligence tools in use;
- The vendors providing such tools;
- The categories of student data collected;
- The extent to which student data is shared; and,
- The educational purpose for which each tool is used.

A parent may revoke consent of any AI-based tool, assignment, or assessment at any time.

A student who opts out shall not be academically penalized or denied access to core instructional content.

Section 4. Limitations on Classroom Use (excerpt)

Source: page 2

A school entity shall not deploy artificial intelligence systems that:

- Profile or categorize students based on political beliefs, religious beliefs, or personal values;
- Conduct psychological, emotional, or behavioral assessments without explicit parental consent; or

Section 5. Student Data and Privacy Protections

Source: pages 2–3

Artificial intelligence systems used by school entities shall collect only the minimum student data necessary to achieve an approved educational purpose.

Student data collected through artificial intelligence:

- Remains the property of the student and parent;
- May not be sold, shared, licensed, or used for commercial advertising or profiling; and
- Shall be deleted within a defined period unless retention is required by law.

A school entity or vendor shall not collect, store, or analyze biometric data, including facial recognition data, voiceprints, or emotional analysis, without case-specific written parental consent.

Section 7. Transparency and Accountability

Source: page 3

Each school entity shall maintain publicly accessible information identifying approved artificial intelligence tools and their intended uses.

Parents shall be notified promptly of any unauthorized disclosure or breach of student data involving artificial intelligence systems.

Section 8. Enforcement (excerpt)

Source: page 3

A school entity or vendor that violates this Act may be subject to contractual remedies, administrative penalties, or other remedies provided by law.